

The Import Manifest (Vessels) Regulations, 1971

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Union of India - Act

The Import Manifest (Vessels) Regulations, 1971

UNION OF INDIA

India

The Import Manifest (Vessels) Regulations, 1971

Rule THE-IMPORT-MANIFEST-VESELS-REGULATIONS-1971 of 1971

Published on 17 April 1971

Commenced on 17 April 1971

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The Import Manifest (Vessels) Regulations, 1971

Published vide M.F. (D.R.) Notification No. 35/71-Cus. (N.T.), dated 17th April, 1971.

M.F. (D.R.) Notification No. 35/71-Cus. (N.T.), dated 17th April, 1971. - In exercise of the powers conferred by Section 157 of the Customs Act, 1962 (

52 of 1962

), the Central Board of Excise and Customs hereby makes the following regulations, namely :

1.

Short title and commencement.

- These regulations may be called the Import Manifest (Vessels) Regulations, 1971.

2.

Definition.

- In these regulations, unless the context otherwise requires "form" means a form appended to these regulations.

3.

Import-manifest.

- [(1)]

[Renumbered as sub-rule (1) by Notification No. G.S.R. 957(E), dated 19.12.2003 (w.e.f. 17.4.1971)]

Every import-manifest shall -

(a)

be delivered in duplicate;

(b)

cover all the goods carried in a vessel; and

(c)

[consist of -

[Substituted by. M.F. (D.R.) Notification No. 17/95 -Cus (N.T), dated 13th March, 1995 (w.e.f. 1st July, 1995).]

(i)

an application for entry inwards in Form 1.

(ii)

a general declaration in Form II.

(iii)

a Cargo declaration in Form III.

(iv)

a vessel's stores list in Form IV.

(v)

a list in Form V of Private property in the possession of the Master, Officers, Crew.]

(2)

[Any person who delivers the imports manifest to proper officer under Section 30 of the Customs Act, 1962 (52 of 1962

), shall apply for registration with the Customs in Form VI.]

[Inserted by Notification No. G.S.R. 957(E), dated 19.12.2003 (w.e.f. 17.4.1971)]

[4. Sizes of Forms I, II, III, IV and V. -Each of the Forms I, II, III, IV, and V shall be on proper of durable quality and the forms shall have the following sizes namely :-

Forms I, II, IV, and V - 210 x 297 millimetres.

Forms III - 430 x 340 millimetres.]

[Ibid.]

5.

Manner of declaring cargo.

(1)

The cargo declaration shall be delivered in separate sheets in respect of each of the following categories of cargo, namely :

(a)

cargo to be landed;

(b)

unaccompanied baggage;

(c)

goods to be transhipped;

(d)

same bottom or retention cargo;

Provided that in respect cargo to be landed as also in respect of unaccompanied baggage the details shall be set out in the order of the ports of loading;

Provided further that in respect of same bottom or retention cargo it will be sufficient if details relating to the nature of the cargo and number of the packages are declared.

(2)

(a)
Notwithstanding anything contained in sub-regulation (1) the cargo declaration in respect of -

- (i)
arms;
- (ii)
ammunition ;
- (iii)
explosives;
- (iv)
narcotics;
- (v)
dangerous drugs;

(vi)
gold;

(vii)
silver;

irrespective of whether for landing, for transshipment, or for being carried as same bottom cargo, shall be delivered in separate sheets and shall be set out in the order of the ports of loading.

(b)
If a vessel does not carry any of the cargoes referred to in Clause (a), a nil declaration shall be delivered.

6.
Delivery of vessel's stores list and list of private property.

- The vessel's stores list and the list of private property in the possession of the master, officers and crew may be delivered along with the cargo declaration; but shall not in any case be delivered later than twenty-four hours after the arrival of the vessel at the port.

[Form I]

[From I to V Substituted by Cust. Notification No. 17/95 (N.T.), dated 13th March, 1995 (w.e.f. 1st July, 1995).]

Application for entry inwards

(See regulations 3 and 4)

To

The Assistant Collector of Customs,

I/we request permission for entry inwards of the Vessel having following particulars -

(i)
Name of the Vessel and shipping line -

(ii)
Rotation No and year

(iii)
Agency Certificate No. - (enclosed)

2. I/we enclose herewith the following documents with this application : -

(i)
General Declaration in Form II containing - pages

(ii)
Cargo declaration in Form III containing - Pages

(iii)
Vessel's stores list in Form III containing - Pages

(iv)
A list in Form V of private property in the possession of the Master, Officers and Crew containing - Pages

(v)
Crew list containing - Pages

(vi)
Passenger list containing - Pages

(vii)

Maritime declaration of health

3. I/We do hereby declare that : -

(a)

the cargo declaration contains a full and true account of the particulars of the goods imported in the vessel ;

(b)

no imported goods have unloaded or delivered out of this vessel since her departure from the last port of call; and

(c)

all the particulars furnished in this manifest and documents submitted with it are true and correct to the best of my/our knowledge.

(Signature of person-in-charge of vessel or Agent)

For Office Use

Import Manifest Delivered Under Section 30(1) of The Customs Act, 1962 on Entry Inwards Permitted on

Cash/deposits/w.R. No.....

Signature And Stamp of Proper Officer

Manifest Closed on

Signature And Stamp of Supdt. (Mcd)

[Form II]

[From I to V Substituted by Cust. Notification No. 17/95 (N.T.), dated 13th March, 1995 (w.e.f. 1st July, 1995).]

General declaration

(See regulations 3 and 4)

Name of shipping line, agent etc.

1. Name and description of ship.

2. Port of arrival.

3. Date and time of arrival.

4. Nationality of ship.

5. Name of master.

6. Port arrived from.

7. Certificate of registry (port, date , number).

8. Name and address of ship's Agent.

9. Gross tonnage.

10. Net tonnage.

11. Position of the ship in the port (berth or station)

12. Brief particulars of voyage (Previous and subsequent ports of call, underline where remaining cargo will be discharges).

13. Brief description of the cargo.

14. Number of crew (inClause Master)

15. Number of passengers.

16. Remarks.

Attached documents(indicate number of copies).

17. Cargo Declaration.

18. ship's Stores Declaration.

19. Crew List.

20. Passengers List.

21. Date and signature y Master, authorised agent or officer.

22. Crew's Effects Declaration.

23. Maritime Declaration of Health.

For official use only

[Form III]

[From I to V Substituted by Cust. Notification No. 17/95 (N.T.), dated 13th March, 1995 (w.e.f. 1st July, 1995).]

Cargo declaration

(See regulations 3 and 4)

Name of shipping line, Agent etc.

1. Name of ship.
2. Port where report is made
3. Nationality of Ship
4. Name of the Master
5. Post of loading.
6. Line No.
7. Bill of loading No.
8. Number and kind of packages, eg., cases, cartons, bags, bales, pieces.
9. Marks and numbers.
10. Gross Weight.
11. Description of goods.
12. Name of consignee/importer, if different.
13. [Date of presentation of bill of entry.]
[To be filled by the Customs House]
14. [Name of Custom House Agent.]
[To be filled by the Customs House]
15. Rotation No.

Year

Page

Cash/[deposit W.R. No.]

[To be filled by the Customs House]

No. of Packages on[which duty collected or ware housed.]

[To be filled by the Customs House]

(to be filled by port trust No. of packages.

discharged

Remarks

Date and signature by Master, authorised agent.

[Form IV]

[From I to V Substituted by Cust. Notification No. 17/95 (N.T.), dated 13th March, 1995 (w.e.f. 1st July, 1995).]

Ship's stores declaration

(See regulations 3 and 4)

Name of the Shipping line, agent, etc.

2. Name of ship.
2. Port of arrival
3. Date of arrival.
4. Nationality of Ship
5. Port arrived from
6. Number of persons on Board
7. Period of stay
8. Place of Storage
9. Name of article
10. Quantity
11. for Official use
- ?.....
- ?.....
- ?.....
- ?.....

[From I to V Substituted by Cust. Notification No. 17/95 (N.T.), dated 13th March, 1995 (w.e.f. 1st July, 1995).]

(See regulations 3 and 4)

1. Name of ship.
2. Nationality of Ship.
3. No.

4. Family name Given name.

5. Rank or Rating.

6. Effects which are dutiable or subject to prohibitions or restrictions * or effects having value exceeding Rs. 3,000/-

(*e.g. wines, spirits, cigarettes, tobacco, currency, etc.).

7. signature.

[illegible]

Certified that no private property included in this list is on Board.

[Date and signature by Master, authorised agent or officer.]

[Form VI]

[Inserted by Notification No. G.S.R. 957(E), dated 19.12.2003 (w.e.f. 17.4.1971)]

[See regulations 3 (2)]

Application Form For Registration

1. Name or applicant with detail Permanent Account Number (PAN) :-

(In case the applicant is a firm or a company, the name of each of the partners of the firm or the directors of the company as the case may be)

2. Full address of the applicant :-

(In case the applicant is a firm or a company, the full address of each of the partners of the firm or the directors of the company as the case may be)

3. The name(s) and address of the authorized persons :-

(In case the applicant is a firm or a company, the name(s) of its partner or partners or director or directors or duly authorized employees who will actually be engaged in the filing of import manifest :-

4.

Educational qualification of each of the persons who will actually be engaged in the filing of import manifest :-

5. The enclosures :-

(a)

Copy of contract, or

(b)

Memorandum of understanding, or

(c)

Agreement entered into with the foreign authorizing agent.

I/We hereby declare that the contents of the above paragraphs are true to the best of my/our knowledge.

Date :

Place:

(Signature of the applicant(s))

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